

Surbeer Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 December 2009 · Writ-C No. 66022 of 2009 · **Interim stay of recovery; writ later dismissed in default**

HEADNOTE

On Regulation 17 of the Electricity Supply Consumer Regulations, 1984 read with clauses 4.37 and 4.38 of the U.P. Electricity Supply Code, 2005, the Division Bench stayed recovery under a citation dated 11.11.2009, observing that minimum charges after disconnection could be taken for at most seven or eight months. Supply had been temporarily disconnected on 1.4.1988 and permanently disconnected on 22.12.1996. The writ was later dismissed in default on 10.4.2019 when none appeared to press it.

FACTUAL SUMMARY

Surbeer Singh's supply was temporarily disconnected on 1.4.1988 for non-payment and permanently disconnected on 22.12.1996. In 2009 he challenged recovery on a citation dated 11.11.2009. The Division Bench stayed that recovery pending the writ, noting that Regulation 17 of the 1984 Regulations read with clauses 4.37 and 4.38 of the 2005 Code capped minimum charges at seven or eight months. After admission in 2010, none appeared in 2019 and the petition was dismissed in default.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.37

minimum charges after disconnection

HOLDING

Read with Regulation 17 of the Electricity Supply Consumer Regulations, 1984, clauses 4.37 and 4.38 of the U.P. Electricity Supply Code, 2005 were treated as limiting the period for which minimum charges may be recovered after disconnection to seven or eight months, and recovery on the 11.11.2009 citation was stayed on that interlocutory footing. The writ was later dismissed in default without a merits determination. ¶ 1

FLAG Court cites 4.37 and 4.38 together with 1984 Regulation 17 for a seven-or-eight-month cap without isolating which clause supplies that period.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 11.11.2009 RECOVERY OF MINIMUM CHARGES BEYOND SEVEN OR EIGHT MONTHS AFTER THE 1988/1996 DISCONNECTIONS WAS LAWFUL

The 4.12.2009 stay was interlocutory; dismissal in default on 10.4.2019 left the dues adjudicated. ¶ 1